

June 8, 2026
Dept. 9
Probate Tentative Rulings

1.	26PR0046	IN THE MATTER OF THE DANIEL E. WILCOXEN EIGHTH RESTATED REVOCABLE TRUST, DATED NOVEMBER 5, 2024
PETITION FOR INSTRUCTION		

Petitioner Trustee filed this Petition for Instruction on April 24, 2026. Notice of hearing and proof of service of the petition was filed on May 1, 2026.

The petition requests the court direct the trustee by interpreting the Eighth Restatement of the Trust which includes the phrase “real property” in the provision which directs the distribution of all of other personal tangible property.

Pursuant to California Code, Probate Code - PROB § 17200

(a) Except as provided in [Section 15800](#), a trustee or beneficiary of a trust may petition the court under this chapter concerning the internal affairs of the trust or to determine the existence of the trust.

(b) Proceedings concerning the internal affairs of a trust include, but are not limited to, proceedings for any of the following purposes:

(1) Determining questions of construction of a trust instrument.....

(6) Instructing the trustee.

Here the petition request the court direct the trustee and provides a declaration of the trust protector, Robert Dudugjian, that he communicated repeatedly over many years with the settlor and he believed his intent to be that all the real property be part of the trust assets AND that he did not intend to have any real property included in as part of the catch all provision stated on page 9 paragraph (x). This interpretation is consistent with the trust stated goals and overall intent as well as multiple prior restatements. Additionally, no beneficiary has filed any response reflecting factual support for an alternative interpretation.

For the reasons stated, the court orders that for the purpose of trust administration the words “real property” are struck from paragraph (x) of page 9 of the Eight Restatement, and the Trustee shall act consistent with this court’s instruction.

TENTATIVE RULING #1: ABSENT OBJECTION THE PETITION FOR INSTRUCTION IS GRANTED DIRECTING THE TRUSTEE TO ACT CONSISTENT WITH THE COURT’S INSTRUCTION TO DISREGARD THE WORDS “REAL PROPERTY” IN PARAGRAPH (X) ON PAGE 9 OF THE EIGHT RESTATEMENT.

ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).